

Physicians of Southwest Washington

PROVIDER AGREEMENT

With

LEGAL PRACTICE NAME RadiantCare Physicians, PLLC

TAX ID #: 91-2018691

ORG NPI #: 1851378160

This PROVIDER AGREEMENT is a contract made and entered into by and between **PHYSICIANS OF SOUTHWEST WASHINGTON, L.L.C.** a Washington corporation (hereinafter referred to as "PSW") and RadiantCare Physicians, PLLC (hereinafter referred to as "PROVIDER").

EFFECTIVE DATE

The effective date of this Agreement is 8/26/19 (hereinafter the "Effective Date").

RECITALS

WHEREAS, PSW is a duly licensed corporation, domiciled in the State of Washington and organized and operating under applicable state law; and

WHEREAS, PSW is an Independent Physician Association that wishes to serve as an agent of health care services providers for the purpose of negotiating and contracting, either directly or through an intervening entity, with health plans for those health care services providers to provide health care services to persons served by those plans. PSW arranges for hospital and medical services covered under its health plans contracts to persons eligible for such services (the "Enrollees") through contractual agreements with hospitals, physicians, and other healthcare services providers; and

WHEREAS, Provider is a Facility, Physician, Group Practice, Health Care Practitioner, supplier or entity which holds (or whose individual members hold, as applicable) all required licenses, registrations, certificates and/or accreditations as required by law for providing health care services in the state of Washington. Provider is engaged in the business of providing health care services and is prepared to provide such services to Enrollees, on the terms and subject to the conditions of this Agreement, and

NOW, THEREFORE, PSW and Provider agree to the terms and limitations stated in this Agreement. This Agreement, including:

Exhibits A, B, Appendices 1, 2 and 3 (attached) and any Amendments as may be mutually agreed in writing from time to time. This Agreement including the Exhibits and Appendices referenced above constitutes the entire understanding between PSW and Provider and supersedes any and all written or oral agreements, representations, or understandings between PSW and Provider (including, if applicable, as an individual Provider if now contracting through a Group Practice.) There are no conditions precedent to the effectiveness of this Agreement other than as stated herein. There are no related collateral agreements between PSW and Provider that are not referenced herein. The Agreement shall take effect on the Effective Date shown above.

WHEREAS, PSW desires to contract with Provider for certain services to be provided to Enrollees of Medical Plans; and,

NOW, THEREFORE, in consideration of mutual promises, covenants and agreements contained in this Agreement, the parties agree as follows:

CONTRACT EXHIBITS AND APPENDICES

PSW and Provider hereby agree that the following Appendices and Exhibits are part of this Agreement and the following bind PSW and Provider and are incorporated herein.

EXHIBITS

EXHIBIT A Medicare Advantage Plans Reimbursement
EXHIBIT B List of providers covered by agreement

APPENDICES

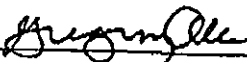
APPENDIX 1 List of Medicare Advantage Medical Plans Participation
APPENDIX 2 Medicare Advantage Regulatory Requirements
APPENDIX 3 State of Washington Regulatory Requirements

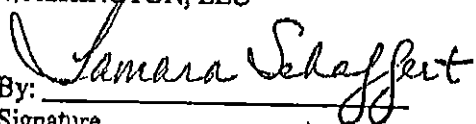
IN WITNESS WHEREOF, the parties hereto have executed and delivered this Agreement in duplicate original.

Effective date: _____

RadiantCare Physicians, PLLC

PHYSICIANS OF SOUTHWEST
WASHINGTON, LLC

By: 
Signature

By: 
Signature

Gregory Allen, MD, PhD

Print or Typed Name

Managing Partner

Title/Authority

8/16/19

Date Signed

Tax ID #: 91-2018691

Mailing Address:

4525 3rd Ave SE, Ste 100, Lacey, WA 98503

4525 3rd Ave SE, Ste 100, Lacey, WA 98503

Mailing Address:

319 Seventh Ave. SE, Suite 201

Olympia, WA 98501

When capitalized in this Agreement, any word or term listed below has the meaning listed after it in this Definitions Section.

Agreement includes, when used herein, this Provider Agreement and all Appendices and Exhibits related hereto, as may be amended from time to time.

Allowed Amount means the maximum amount Provider shall receive from PSW for Covered Services furnished to Enrollees and is the sum of the payment due under a Medical Plan plus any Enrollee responsibility, such as Deductible, Co-payment or Coinsurance, plus any coordination of benefit payments from other insurers. Provider may not collect any amount in excess of the Medical Plan determined Allowed Amount.

Appendices means all appendices attached to and referenced in the Agreement, and which by the reference are incorporated herein as part of the Agreement.

Care Management Department means the department within PSW supported by the Medical Director and responsible for monitoring medical management of hospital services by Participating Providers, patterns of Participating Providers' care and treatment of Enrollees, and management of medical services by Enrollees.

Clean Claim means a claim for payment that has no defect, impropriety, lack of substantiating documentation, or particular circumstance requiring special treatment that prevents timely payment from being made on the claim.

Coinsurance means the percentage of eligible medical expenses payable by an Enrollee to Provider for Covered Services as defined by the applicable Subscriber Agreement.

Consulting Specialist means a Participating Provider or other referral physician to whom an Enrollee has been referred for consulting specialty services and who limits his or her practice to a certain branch of medicine or osteopathy related to specific services or procedures, certain categories of patients, certain body systems, or certain types of diseases.

Co-payment means the fixed amount an Enrollee must pay Provider each time the Enrollee receives a specified Covered Service, as defined by the applicable Subscriber Agreement.

Covered Services means Medically Necessary medical services, supplies and accommodations for which an Enrollee is eligible under the terms of the applicable Subscriber Agreement and as are customarily provided by the Provider. Services which are not Medically Necessary Services and/or not covered in Enrollee's Subscriber Agreement shall not be deemed Covered Services for the purposes of this Agreement.

Deductible means the fixed amount an Enrollee must pay Provider for Covered Services before PSW commences payment for Covered Services, as defined by the applicable

Subscriber Agreement.

Enrollee means either a Subscriber or a dependent of a Subscriber who is properly enrolled under a Medical Plan Subscriber Agreement or whose health benefits or network are administered by PSW. Enrollee also means an individual covered under another Payer that has a reciprocal agreement with PSW.

Exhibits means all exhibits attached to and referenced in the Agreement, and which by the reference are incorporated herein as part of the Agreement.

Facility or Health Care Facility means an institution or other health care delivery organization that provides services to Medical Plan Enrollees. A Health Care Facility includes, but is not limited to, a hospital, a hospice, a skilled nursing facility, or an ambulatory surgical center. A Health Care Facility may also be referred to as a "Participating Provider."

Inpatient means an Enrollee who has been formally admitted to a Health Care Facility who requires medical, surgical, rehabilitation or other acute care nursing and formally meets the inpatient admission criteria of the Facility.

Medical Director means a physician licensed to practice medicine under the laws of the State of Washington and under contract with PSW to advise PSW's Care Management department.

Medical Emergency means the emergent and acute onset of a symptom or symptoms, including severe pain, that would lead a prudent layperson acting reasonably to believe that a health condition exists that requires immediate medical attention; or that failure to provide medical attention would result in serious impairment to bodily functions or serious dysfunction of a bodily organ or part, or would place the Enrollee's health in serious jeopardy.

Medical Plan means any commercial, Medicaid or Medicare Advantage plan that has contracted with PSW to provide Covered Services to Enrollees.

Medically Necessary Services means: shall mean health care services that a Provider, using sound evidence based information and prudent clinical judgment, would provide to a patient for the purpose of preventing, evaluating, diagnosing or treating an illness, injury, disease or its symptoms, and that are:

- A. in accordance with generally accepted standards of medical practice; for these purposes, "generally accepted standards of medical practice" means: standards that are based on credible scientific evidence published in peer-reviewed medical literature; and

B. clinically appropriate, in terms of type, frequency, extent, site and duration, and considered effective for the patient's illness, injury or disease based on available medical evidence; and

C. not primarily for the convenience of the patient, physician, or other health care provider, and not more costly than an alternative service or sequence of services at least as likely to produce equivalent therapeutic or diagnostic results as to the diagnosis or treatment of that patient's illness, injury or disease.

Medicare Enrollee means a Subscriber who is enrolled under the terms of a contract between the Centers for Medicare and Medicaid (CMS) and a Medical Plan, which Medical Plan is contracted with PSW, and who is entitled to receive Covered Services from Provider.

Non-covered Services means services not covered by an Enrollee's Subscriber Agreement, and for which a Medical Plan does not provide benefits. Non-covered services are identified as such on Provider's payment voucher and in the Enrollee's explanation of coverage and Integrated Denial Notice.

Outpatient Services means health care services rendered to an Enrollee who is not an Inpatient, whether or not the Enrollee occupies a bed.

Participating Providers or Providers means Physicians, Practitioners, Health Care Facilities, and other health care professionals who have entered into written agreements with PSW to provide Covered Services to Enrollees who or which agrees to accept from and to look solely to PSW for payment according to the terms of the Subscriber Agreement for Covered Services rendered to Enrollees, and also includes any Practitioner with whom Provider has entered into an approved subcontract pursuant to this Agreement to render Covered Services to Enrollees.

Policies and Procedures means applicable manuals and documents, specifically including PSW's Standards of Conduct and any Medical Plan's Standards of Conduct, ethics, and compliance program documents and guidance, and PSW's Provider Manual and any Medical Plan's Provider Manual, if applicable, as periodically revised, including but not limited to credentialing policies and procedures, medical management policies and procedures, claims and encounter submission policies and procedures, drug formulary, and Participating Provider lists, provided to Provider by PSW and/or a Medical Plan pursuant to this Agreement.

Practitioner means an individual who provides professional health care services and is licensed, certified, or registered by the state in which the services are performed. A Practitioner may also be referred to as a Participating Provider.

Primary Care Provider means the Practitioner selected by an Enrollee to render Covered Services and coordinate the provision of other health care services to Enrollee. All of

the following may be designated Primary Care Providers: Internists, Pediatricians, Family Practitioners, Geriatric Medicine and/or General Practitioners.

Provider Manual means the document containing certain policies and procedures as they relate to in-network providers and specifically identified as a Provider Manual inclusive of any addenda, appendices or documents referenced or incorporated therein, as periodically revised.

Provider Payment Dispute means a request for review of payment made by PSW to Provider. Rationale may include over or underpayment, incorrect application of multiple procedure payment rules, incorrect rate adjustment.

Standard of Conduct or Code of Conduct means the document adopted by an organization that is so identified and that addresses standards of conduct and ethics of an organization, as periodically revised.

Subscriber means the individual who meets the eligibility requirements of his/her Subscriber Group, who has made an application, and whose premiums have been paid by the Subscriber Group; or an individual who has entered into an individual Subscriber Agreement directly with a Medical Plan and who has paid her/her premium. Subscribers include members assigned or attributed to a PSW Medical Plan agreement.

Subscriber Agreement means any contract entered into by a Medical Plan with or for the benefit of an Enrollee, entitling the Enrollee to receive certain defined benefits.

Subscriber Group means an organization, firm or governmental entity that has contracted with a Medical Plan to arrange health care services for its employees and/or retirees and/or their spouses and/or their dependents.

Urgently Needed Services means Covered Services (that are not services provided pursuant to a Medical Emergency as defined in this Agreement) provided when an Enrollee is temporarily absent from Medical Plan service (or, if applicable, continuation) area (or, under unusual and extraordinary circumstances, provided when the Enrollee is in the service or continuation area but the organization's provider network is temporarily unavailable or inaccessible) when the services are medically necessary and immediately required:

- (i) As a result of an unforeseen illness, injury, or condition; and
- (ii) It was not reasonable given the circumstances to obtain the services through the organization offering the Medical Plan.

Value Based Incentive Means the payment amount available to Providers for successful participation in PSW's value-based program. Providers have the potential to receive incentive payments for meeting quality measures as outlined per Exhibit A.

PART 2 OBLIGATIONS OF PSW

- 2.01 Payment for Covered Services.** For PSW contracted Medical Plans that have delegated claims processing responsibilities to PSW, PSW shall process claims of, and transmit payments to, Provider for Covered Services that Provider renders to Enrollees, in accordance with the terms and conditions set forth in this Agreement, including any attached Appendices and Exhibits, and subject to the terms and limitations of this Agreement and the Subscriber Agreement. In the event that PSW is not delegated to process claims, the contracted Medical Plan will process and transmit payments.
- 2.02 Identification Cards.** PSW shall require each Medical Plan to arrange for the issuance of identification cards to Enrollees. Enrollees will be instructed to present identification cards to Provider at the time services are requested. Such identification cards are not a verification of eligibility as an Enrollee or a guarantee of payment, but a means of providing information that Provider can easily use to verify eligibility with a Medical Plan. The cards will include a telephone number or other means for checking an Enrollee's benefits and eligibility for benefits, including any limitations or conditions on services or benefits.
- 2.03 Promotion.** PSW and any Medical Plans will have the right to use Provider's name for promotional purposes, for marketing, for informing the public of Provider's identity and to otherwise carry out the terms of this Agreement. This provision for promotion of Provider is nonexclusive.
- 2.04 Benefit and Eligibility Determinations.** PSW shall require each Medical Plan to confirm Enrollees eligibility for Covered Services upon request of Provider. The respective Medical Plan shall have the sole authority to determine the eligibility of Enrollees for benefits and whether services are included under the terms of the Medical Plan Subscriber Agreement. Provider shall not take any action or make any representations regarding eligibility or benefits without having obtained information from the Medical Plan. Provider may appeal benefit and eligibility determinations in accordance with the policies and procedures of the respective Medical Plan.
- 2.05 Administrative Policies and Procedures.** PSW shall provide timely updates to Provider of all substantive changes to its Policies and Procedures. PSW shall provide notice of at least sixty (60) days for any changes in its Policies and Procedures that affect Provider's compensation or that affect Provider's obligations for health care service delivery, unless changes to federal or state law or regulations make such advance notice impossible, in which case notice shall be as soon as possible. Subject to the termination and continuity of care provisions of this Agreement, Provider may terminate this Agreement without penalty if it does not agree with the changes. No change may be made retroactive without the express consent of Provider.
- 2.06 Non-discouragement.** PSW shall not in any way preclude or discourage Provider from informing Enrollees of the care they require, including various treatment options and whether, in Provider's view, such care is consistent with medical necessity, medical

appropriateness or otherwise covered under the Enrollees Subscriber Agreement. PSW shall not prohibit, discourage or penalize Provider, if Provider is otherwise practicing in compliance with the law, from advocating on behalf of an Enrollee with PSW or a Medical Plan. However, nothing in this section shall be construed to authorize Provider to bind PSW to pay for any service.

PSW shall not preclude or discourage Enrollees, or those paying for their coverage, from discussing with Provider the comparative merits of different health carriers, even if such discussion is critical of a Medical Plan that contracts with PSW. PSW shall not preclude or discourage Provider from entering into such discussions with Enrollees.

Notwithstanding any other provision of this Agreement or law, PSW shall not prohibit directly or indirectly any Enrollees from freely contracting at any time to obtain any health care services outside a Medical Plan hereunder on any terms or conditions the Enrollees choose. Nothing in the section shall be construed to bind PSW for any services delivered outside a Medical Plan Subscriber Agreement

PART 3 OBLIGATIONS OF PROVIDER

3.01 Participation in PSW Network. Provider hereby agrees to participate in PSW's network of Providers. In response to PSW's offer to Provider to participate in a Medical Plan, Provider agrees to evaluate such opportunities in good faith and to timely notify PSW whether Provider intends to participate in such Medical Plan. Agreement to participate by Provider in a Medical Plan shall be by execution of a specific Appendix documenting the same. Notwithstanding the foregoing, if a Provider agrees to participate in a Medicare Advantage Medical Plan, then Provider shall be obligated to participate in all Medicare Advantage Plans that PSW contracts with.

3.02 Services Provided to Enrollees. Provider will provide Covered Services to Enrollees in compliance with the terms of this Agreement. Provider is only obligated to provide Covered Services to Enrollees of such Medical Plan(s) that Provider has specifically agreed to participate in and agreed to a rate structure, as evidenced by signature. When providing such services, Provider will exercise the degree of care, skill and learning expected of a prudent provider and in accordance with applicable federal and state regulations, including those of CMS, if applicable. Provider will observe, protect and promote the rights of Enrollees as patients. Provider shall not discriminate among patients and Provider agrees to provide the same level of service and quality of care to all patients, regardless of type of Subscriber Agreement. Provider should discuss all final decisions with Enrollee regarding providing or receiving services regardless of whether such services are Medically Necessary, not Medically Necessary or Non-covered Services. Nothing in this provision shall be construed to authorize Provider to bind PSW to pay for any service.

3.03 Nondiscrimination. Participating Providers will provide services to Members on the same basis as such services are made available by Provider to patients who are not Members, and without regard to the Member's status as an Attributed Member in a Plan of

privately financed health care coverage or as a Delegated Entity in a program of publicly financed health care services, with respect to the availability and quality of Provider services.

Participating Providers further agrees not to discriminate in the treatment of patients or in the quality of services delivered to Members on the basis of:

- race
- color
- sex
- age
- religion
- national origin
- place of residence
- health status
- disability
- source of payment
- amount of payment
- sexual orientation
- gender identity or expression
- marital status
- veteran status

3.04 Licensure/Certification. Provider will maintain in good standing all licenses, permits, governmental or board authorizations or approvals required by law for Provider's operation and PSW's credentialing standards. Provider will submit evidence of such licenses, permits, governmental or board authorizations or approvals to PSW upon request and shall immediately notify PSW of any termination, revocation, suspension or limitation thereof. Participating Provider agrees to comply with the obligations of this section, including, but not limited to: (a) any suspension, revocation, condition, expiration or other restriction of any licensure, certification or accreditation; (b) the exclusion, suspension or bar from, or imposition of any sanctions against or relating to any government payer program, or any settlement related thereto; (c) any disciplinary action initiated by any regulatory body (d) the suspension, limitation, revocation or termination of any hospital privileges; (e) any action concerning or brought by a Member; (f) the conviction of any of fraud or any felony; and/or (g) settlement related to any of the foregoing.

3.05 Credentialing. Provider warrants, currently and for the duration of this Agreement, that it meets PSW's credentialing standards, and that Provider and any practitioner affiliated with Provider has all licenses, permits, and/or governmental or board authorizations or approvals necessary to provide Covered Services in accordance with the applicable requirements in the state(s) in which Provider operates.

Provider agrees not to render Covered Services to a Medical Plan's Enrollees prior to written notification from PSW to Provider that the Provider has been fully credentialed

and approved for participation by PSW and the respective Medical Plan. Any services rendered by a non-credentialed Provider will be the sole responsibility of the Provider alone. Enrollees may not be billed for such services and shall be held harmless.

Provider further warrants that he/she/it will cooperate with PSW's credentialing and re-credentialing processes for the duration of this agreement. In the event credentialing requirements are not adhered to, provider may be subject to the below actions until requirements are met

- a) claims reimbursement rate will revert to standard MEDPAR
- b) contract will be subject to termination with cause

Provider will provide immediate written notice to PSW of any changes in the licenses, permits, and/or governmental or board authorizations or approvals referenced above, including, but not limited to, ownership, business address, federal tax identification number, new Practitioners proposed to be included as a Provider pursuant to this Agreement and any factors that may materially impact Provider's ability to provide Covered Services to Enrollees hereunder.

PSW's credentialing criteria, standards and requirements do not limit our discretion in any way or create rights on the part of care providers who seek to provide health care services to our members. We retain the right to approve, suspend and terminate individual care providers and sites in situations where we have delegated credentialing decision-making.

3.06 Care Management. Provider agrees to cooperate with and participate in PSW's contracted Medical Plans and PSW's Care Management programs, and Enrollee appeals and grievances. For Care Management programs, this includes, but is not limited to, notification of admissions, applicable referral procedures, and reporting of clinical encounter data.

Provider further agrees to cooperate with PSW concurrent review and discharge planning procedures, by providing medical records and other necessary information regarding Enrollees' care in progress, length of stay and discharge status upon PSW's reasonable request. Provider agrees that such access and information provision will be timely and take place at no additional charge.

Provider acknowledges that Care Management services and functions may be performed by PSW or an affiliate or an outside Care Management entity designated by PSW.

3.07 Retrospective Review. PSW may conduct a retrospective review to determine whether all services provided to an Enrollee are covered and/or Medically Necessary. Provider will abide by PSW decisions made through retrospective review subject to the dispute resolution procedures set forth in this Agreement. Provider will not seek payment from PSW or the Enrollee for Covered Services which PSW determines were not Medically Necessary as a result of its retrospective review other than in compliance with the

provisions of the Payment section below.

3.08 Quality Improvement. Provider shall cooperate and comply in a timely manner with the quality improvement programs, activities and initiatives established by PSW and any Medical Plan presently in effect and as may be established and amended from time-to-time during the term of this Agreement, which may include by way of illustration and not limitation, preauthorization of select services, cooperation with concurrent review and specialty referrals, provision of requested data and on-site office review, and various initiatives and programs relating to improving clinical care via evidence-based clinical guidelines. In addition, to collection of health data, responding to inquiries regarding member complaints and quality of care concerns; and responding to program evaluations and satisfaction surveys. Onsite reviews will be scheduled during regular business hours and with reasonable prior notice to Provider.

3.09 Reporting to PSW and any Medical Plan(s). Provider shall cooperate with PSW and any Medical Plan's data collection and reporting efforts, in compliance with requirements of the National Committee for Quality Assurance (NCQA) and HEDIS®, or any other accreditation program(s) designated by a Medical Plan, as applicable.

Provider shall provide immediate written notice to PSW of any legal, regulatory, or governmental action which Provider reasonably believes could materially affect the ability of the Provider to carry out the duties and obligations of this Agreement, including, without limitation, litigation initiated by a patient against Provider. Before Provider releases any information to state or federal auditors, Provider, where practical, shall first notify PSW of the proposed release of such information. Provider agrees that such access and information provision will take place at no additional charge.

3.10 Insurance. Provider will provide and maintain, at its sole expense, policies of general comprehensive liability and professional liability insurance. Such insurance coverage shall be either (i) "occurrence" coverage or (ii) "claims made" coverage with additional "tail" coverage, with coverage limits of not less than One Million Dollars (\$1,000,000) per incident and Three Million Dollars (\$3,000,000) annual aggregate. Such policies shall insure against any claim or claims for damage arising by reason of personal injury or death occasioned directly or indirectly in connection with the acts or omissions of Provider, its agents or employees pursuant to this Agreement. Provider shall notify PSW no less than ten (10) days before any reduction in coverage or revocation, suspension or other termination of any such policy.

Upon request, Provider will provide PSW with evidence of compliance with this section, in the form of a certificate of insurance or evidence of self-insurance or evidence in some other form as PSW will deem satisfactory.

3.11 Standards of Conduct Compliance Provider also agrees to abide by PSW's Standards of Conduct and the Standards of Conduct of any Medical Plan. Such Standards of Conduct shall be available electronically, and paper copies will be available upon request. Furthermore, Provider agrees to comply with all administrative Policies and Procedures

Issued by PSW, and any Medical Plans that Provider participates in. The Policies and Procedures are as set forth in the PSW's Provider Manual. The laws, regulations and applicable policies and procedures include, without limitation, the Health Insurance Portability and Accountability Act (HIPAA) and all regulations promulgated thereunder, prevention of fraud, waste and abuse, federal exclusion requirements, The False Claims Act, The Anti-Kickback Law, and the Stark Law. Provider specifically agrees that they shall require compliance with all such laws, regulations, policies and procedures by downstream entities, as that term is used with respect to CMS regulations. Compliance includes abiding by all Policies and Procedures with respect to, but not limited to Care Management, Quality Improvement, Claims Processing, and Credentialing. These Policies and Procedures cover, among other items, authorization and referral procedures, medical necessity determinations, Enrollee rights, responsibilities and appeals and grievances, billing procedures and standards including prevention of fraud and abuse, and other matters that relate to Provider's provision of Covered Services to Enrollees and compliance with this Agreement. PSW will provide information to Provider, as necessary, regarding such administrative rules and procedures. A copy of PSW's and any applicable Medical Plan's Policies and Procedures, as set forth in the applicable Provider Manuals and any supplements thereto, shall be provided, or accessible in an electronic format, to Provider. Changes to PSW's Policies and Procedures shall be made as described in Section 2.05. Changes to a Medical Plan's Policies and Procedures shall be provided to Provider in accordance with Section 2.05 as well.

3.12 Care Access. Provider shall cooperate with PSW's and any Medical Plan's written standards for timely access to care and services by Medical Plan Enrollees. Where a Subscriber Agreement requires certain services to be provided only upon the referral of a primary care provider, the following health services may be provided to Medical Plan Enrollees without such a referral: (1) screening mammography and influenza and pneumococcal vaccination health services; and (2) for women, routine and preventive health services from a Provider that is an in-network women's health specialist. No Enrollee expense shall apply to influenza and pneumococcal vaccines.

3.13 Continuation of Services after Subscriber Group, Provider, or Enrollee Termination. Provider agrees that if a Subscriber Group's participation in a Medical Plan terminates, or if the Provider terminates this Agreement, or if an individual Enrollee terminates an individual Enrollee's coverage, all Covered Services shall continue to be provided to those Enrollees confined in an Inpatient Facility on the date of such termination, until such Enrollee's discharge or alternative coverage for such Inpatient confinement is obtained. {PSW shall continue to assist Provider with Care Management services in such event.} In the case of a Medicare Enrollee, Provider may bill Part B Medicare as of the date Enrollee's coverage with such Medicare Medical Plan terminates.

3.14 Provider Requirements Regarding Electronic Health Records, Data Collection and Participation in Data Programs. Provider agrees to use Electronic Health Records ("EHRs") and to allow PSW full remote access to Enrollee data on Provider EHRs. Furthermore, Provider agrees to fully participate in PSW's programs involving use of

electronic health records and data collection and programs, including programs involving quality reporting and clinical care management. Such participation may include, without limitation, provision of data regarding Enrollees to PSW directly, and to such health information exchanges and databases as may be required from time to time, and in such formats and using such programs as may reasonably be required.

Provider acknowledges failure to utilize an EXIR will impact the success rate of value based program participation; therefore directly impacting the ability to achieve a value based incentive payment.

3.15 Participation Requirements. Provider represents and warrants that Provider is not excluded, and will not employ or contract with any individual who is excluded, from participation in any federal or state program, including, without limitation, Medicare under Sections 1128 or 1128A of the Social Security Act.

3.16 Provider Service Obligations. PSW and Provider agree that any additional description of services provided pursuant to this Agreement, shall be mutually negotiated via addendum and attached hereto (if any) are expressly incorporated hereunder.

PART 4 PAYMENT AND BILLING

4.01 Payment. PSW is fully delegated for claims processing. PSW will pay Provider in accordance with and subject to the terms and conditions of this Agreement. Provider will seek payment solely from PSW for Covered Services rendered to Medical Plan Enrollees where PSW has been delegated for claims processing and shall accept as full payment the Allowed Amount(s) set forth below. These prices are all inclusive. The Centers for Medicare and Medicaid Services (CMS) and state regulations will be followed where applicable for payment methodology, such as multiple procedure payment reduction or rebasing. PSW will not pay sales tax.

1. Provider agrees to accept the rates set forth in Exhibit A to an individual Medical Plan or Medical Plans as payment in full for the Covered Services required under this Agreement, whether that amount is paid in whole or in part by the Enrollee, by PSW, by a PSW contracted Medical Plan or by any combination of payers, including other health care plans that pay before PSW or a PSW contracted Medical Plan as required by applicable state or federal coordination of benefits provisions.
2. Provider will not knowingly seek payment from PSW or a PSW contracted Medical Plan for any Covered Services rendered to a person who misrepresents his or her status as an Enrollee or who previously obtained coverage from a Medical Plan as an Enrollee through fraud or misrepresentation
3. Notwithstanding any other provision of this Agreement, nothing in this Agreement shall be construed to modify the rights and benefits contained in the Member's Subscriber Agreement.

4. Participating Providers may not bill Member for Covered Services (except for Deductibles, Co-payments, or Coinsurance), where PSW denies payment because Participating Providers have failed to submit a clean claim and/or comply with the terms or conditions of this Agreement.
5. Provider acknowledges during any provider dispute, mediation process or member appeal, Provider shall not bill or otherwise seek collection from Enrollee for any payment amounts in dispute.
6. Provider agrees to the CMS regulation as specified under 42 CFR 422.504(e)(1)(i); 422.504(i)(3)(i) pertaining to Member Hold Harmless protections.

4.02 Enrollee Billings and Continuation of Services

A. No Recourse against Enrollee

1. Provider shall hold Enrollees harmless for payment of fees that are the legal obligation of PSW and/or any Medical Plan to fulfill. Such provision will apply but will not be limited to insolvency of PSW or a Medical Plan, contract breach and provider billing; Provider hereby agrees that it will not bill, charge, collect a deposit from, seek compensation, remuneration from, or have any recourse against an Enrollee or person acting on an Enrollee's behalf, other than PSW, or a Medical Plan if applicable, for services provided pursuant to this Agreement. This provision shall not prohibit collection of Deductible, Co-payments, Coinsurance, and/or Non-covered Services (subject to the Pre-Service Organization Determination rules set forth above) which have not otherwise been paid by a primary or secondary carrier in accordance with regulatory standards for coordination of benefits, from Enrollees in accordance with the terms of the Enrollee's Subscriber Agreement. Participating Providers shall collect any Enrollee Expenses due from Enrollees for Covered Services directly from such Enrollees, and shall not waive, discount or rebate any such Enrollee Expenses.

2. Except as provided in this Agreement and as specifically limited below, Provider will not seek payment from Enrollee, PSW or a PSW contracted Medical Plan for services determined not to be Medically Necessary by PSW medical management unless the Enrollee has been notified of non-coverage in writing from PSW prior to services being provided. With respect to any services determined not to be Medically Necessary for an Enrollee, Provider must obtain a Pre-Service Organization Determination for any such services prior to referring for or providing such services unless the service is clearly excluded in an Enrollee's Explanation of Coverage.

Advanced Beneficiary Notification (ABN's) are not applicable to Medicare Advantage and will not be allowed.

3. Providers must formally request such Pre-Service Organization Determination from PSW if they know or have reason to know that a service they are providing or are referring may not be covered. This includes obtaining a Pre-Service Organization Determination for items.

that are generally excluded, but may be covered under certain circumstances. In all cases, Provider shall obtain a Pre-Service Organization Determination unless the Enrollee is clearly aware that such services are not Covered Services in accordance with CMS rules. The benefits to which an Enrollee is entitled shall be limited to those specified in the Enrollee Subscriber Agreement in effect at the time services are performed, and are subject to the Enrollee's continued eligibility.

Furthermore, Provider agrees to follow the regulatory and PSW and Medical Plan operational requirements regarding provision of Non-Covered benefits to Enrollees, including but not limited to notifying Enrollees of the Non-Covered service and receiving the Enrollees written permission in advance of the provision of such service. With respect to Medicare Advantage Medical Plans, Provider specifically agrees to request a pre-service organization determination for any non-covered Service not clearly and conclusively excluded in an Enrollees explanation of coverage.

4. Provider agrees, in the event of PSW's or a PSW contracted Medical Plan's insolvency, to continue to provide the services promised in this Agreement to Enrollees of the Medical Plan for the duration of the period for which premiums on behalf of the Enrollee were paid to the Medical Plan or until the Enrollee's discharge from inpatient facilities, whichever time is greater, as determined by state or federal guidelines, i.e., CMS

5. Notwithstanding any other provision of this Agreement, nothing in this Agreement shall be construed to modify the rights and benefits contained in the Enrollee's Subscriber Agreement.

6. Provider further agrees that: (i) the provisions of 1, 2, 3 and 4 of this Section shall survive termination of this Agreement regardless of the cause giving rise to termination and shall be construed to be for the benefit of a Medical Plan's Enrollees, and (ii) that this provision supersedes any oral or written contrary agreement now existing or hereafter entered into between Provider and Enrollee(s) or persons acting on Enrollee's behalf.

7. If Provider contracts with other Providers that agree to provide Covered Services to Enrollees of a Medical Plan with the expectation of receiving payment directly or indirectly from PSW, such Providers must agree to abide by the provisions of 1, 2, 3, 4 and 5 of this Section.

8. Provider acknowledges that willfully collecting or attempting to collect an amount from an Enrollee, knowing that collection to be in violation of this Section 4.02, constitutes a class C felony under RCW 48.80.030(5).

4.03 Claims Submission. Provider will submit claims to PSW electronically, following 5010 guidelines, unless otherwise directed by PSW.

Provider agrees to submit claims directly to PSW within thirty (30) days after Covered Services are rendered, but neither PSW nor a PSW contracted Medical Plan will be obligated to pay a claim if PSW or a PSW contracted Medical Plan receives it more than three hundred and sixty five (365) days after the date Covered Services were provided,

or sixty (60) days after Provider first receives notice that (i) PSW or a PSW contracted Medical Plan is a secondary payer under applicable coordination of benefits procedures or (ii) that other potential payers may be involved (including, without limitation, a stop-loss insurer)

Provider will be reimbursed only for Covered Services which were ordered by a qualified Practitioner, delivered to the Enrollee and documented in the medical record. The coding convention used on submitted claims will accurately reflect services provided and the reasons for the procedure, service, supply or encounter. Upon request, Provider will furnish all information reasonably required by PSW or a PSW contracted Medical Plan to substantiate the provision of, and charges for, the Covered Services, at no charge to PSW.

For Covered Services provided to Enrollees, PSW, where PSW is delegated for claims processing or a PSW contracted Medical Plan, shall pay Provider as soon as practical but subject to the following minimum standards:

A. Ninety-five percent (95%) of the monthly volume of Clean Claims shall be paid within thirty (30) days of receipt by PSW; and

B. Ninety-five percent (95%) of the monthly volume of all claims shall be paid or denied within sixty (60) days of receipt by PSW, except as agreed to in writing by the parties on a claim-by-claim basis.

The receipt date of a claim shall be the date PSW or a PSW contracted Medical Plan receives either written or electronic notice of the claim. PSW shall pay Provider interest on paid Clean Claims more than sixty-one (61) days old. Interest shall be assessed at the rate of one percent (1%) per month, and shall be calculated monthly as simple interest prorated for any portion of a month. PSW shall add the interest payable to the amount of paid claims without the necessity of the Provider submitting an additional claim. PSW shall not apply any interest to an Enrollee's Deductible, Co-payment, Coinsurance or any similar obligation of the Enrollee.

For all claims subject to CMS rules, PSW or a PSW contracted Medical Plan shall reimburse Provider for Covered Services following receipt of a Clean Claim in accordance with Medicare rules.

Claim denials shall include the specific reason why the claim was denied. If the denial is based upon Medical Necessity or similar grounds, PSW, upon request from Provider, shall promptly disclose the supporting basis for the decision.

These standards do not apply to claims about which there is substantial evidence of fraud or misrepresentation by Provider or Enrollee, or instances where PSW has not been granted reasonable access to information under Provider's control.

4.04 Cancellation of Coverage. PSW or a PSW contracted Medical Plan will not be liable to Provider for any health care services provided to an Enrollee whose coverage under the applicable Enrollee Subscriber Agreement is canceled retroactively. Reasons for such cancellation may include, but are not limited to, misrepresentation and nonpayment of premiums.

4.05 Refunds. Claim approval and/or payments made by PSW, where PSW has been delegated for claims processing, are contingent upon receipt of complete and accurate information from Provider. Provider will promptly refund amounts paid by PSW if it is determined that PSW has accepted responsibility for payment based upon erroneous or incomplete information, if benefits are misapplied by PSW, or an Enrollee is not entitled to those benefits, or any other reason for an erroneous payment. In the event PSW is unable to recoup refunds due from Provider for reasons noted above against claims payments due, or if a mutually agreeable repayment plan is not in place within 90 days, PSW may pursue collection against Provider.

PSW follows CMS guidelines and shall not seek a refund or payment related to any overpayment, more than six (6) years after final adjudication of the claim, except in the case of concealment, fraud, waste or abuse, or misrepresentation.

4.06 Coordination of Benefits and Third party Liability. Provider agrees to cooperate with coordination of benefits and duplicate coverage policies as follows:

Provider will make available complete information to PSW or a PSW contracted Medical Plan regarding benefits available to an Enrollee from other sources including other health plan coverage. Provider will promptly refund any excess payments from PSW or a PSW contracted Medical Plan if, after payment is made, an Enrollee is found to be covered by another source. At the discretion of PSW or a PSW contracted Medical Plan the amount to be refunded may instead be offset against any future amounts due Provider.

If Provider has received payment from another plan or entity which pays before PSW or a PSW contracted Medical Plan in the coordination of benefits order of benefit determination, and that payment is equal to or greater than the contracted rates set forth in this Agreement, Provider agrees to not seek additional reimbursement from PSW or a PSW contracted Medical Plan or to promptly refund any amounts already paid to Provider by PSW or a PSW contracted Medical Plan.

4.07 Referrals & Prior Authorization Provider agrees to adhere to PSW's referral and prior authorization process as outlined in the provider manual. The prior authorization list may change from time to time as determined by PSW and/or its contracted health plan(s). PSW's current prior authorization list will be posted electronically on its website by the start of the applicable benefit year.

PART 5 RECORDS MAINTENANCE, AVAILABILITY, INSPECTION AND AUDIT

5.01 Records. Provider will prepare and maintain all appropriate records including, but not limited to, medical, medical abstract, financial and administrative records for each Enrollee who receives services from Provider. The records will be maintained in accordance with prudent record-keeping procedures and as required by law. Provider shall retain all such records for a minimum of ten (10) years from the date of payment by PSW or completion of any audit being performed by a federal or state agency, whichever is later.

5.02 Inspection and Audit. Except as provided by law, Provider shall cooperate with any external audits mandated by federal or state law or regulations, and shall make all records available to appropriate federal and state authorities, subject to applicable federal and state laws and regulations relating to the privacy of an individual's health care information. Provider will allow and fully cooperate with inspection, audit and duplication by PSW and any Medical Plan of any and all data and other records maintained on a Medical Plan's Enrollees which relate to this Agreement to the extent necessary to perform the audit or inspection. Such data and other records include, but are not limited to, billing, payment, assignment, medical management review, medical and medical abstract records maintained on Enrollees pursuant to this Agreement, and charge and reimbursement data maintained by Provider related to charges made and payments received by Provider from other payers on behalf of Enrollees. Such inspection, audit verification and duplication will be allowed upon reasonable notice during regular business hours.

In addition, Provider shall make such data and other records available to appropriate state and federal authorities involved in assessing the quality of care or investigating the grievances or complaints of Enrollees, subject to applicable state and federal laws related to the confidentiality of medical records.

Provider and its representatives may audit, examine and inspect PSW's books and records of account relating to transactions between PSW and Provider during normal business hours upon giving reasonable notice to PSW.

5.03 Copies. Provider will maintain and provide documents requested by PSW for audit, accreditation and/or oversight review purposes, and as may be required by state or federal law. PSW agrees to request only those portions of the medical record necessary to perform the required medical review or claims processing. Provider agrees that such access and information provision will take place at no additional charge. Upon request from a Medical Plan, another treating provider or an Enrollee, Provider agrees to transfer a copy of the medical records and to provide relevant clinical information for Enrollees referred and/or transferred to another provider or medical facility for any reason, including without limitation, expiration or termination of PSW's agreement with a Medical Plan. The copy and transfer of medical records shall be at no cost to the Medical Plan, PSW or the Enrollee. Provider will ensure timely access by Enrollees to medical records and other health and enrollment information that pertains to them.

5.04 Confidentiality of Enrollee Health Information. Provider and PSW will keep confidential, and take all reasonable precautions to prevent the unauthorized disclosure of, any and all Enrollee health information and records, both paper and electronic, required to be prepared and/or maintained by this Agreement in accordance with state and federal law including, but not limited to, the Health Insurance Portability and Accountability Act of 1996 (Public Law 104-191) as amended, and the Health Information Technology for Economic and Clinical Health Act of 2009 and regulations promulgated thereunder (collectively "HIPAA"), and Chapter 70.02 RCW, the Washington State Health Care Information Access and Disclosure Act of 1991. Both parties agree to maintain the confidentiality of all enrollee health information and to not use or disclose such health information other than as may be permitted or required by federal or state law or regulations currently in effect, or becoming effective during the term of this Agreement, including, but not limited to, the federal HIPAA Privacy and Security regulations.

PART 6. TERM AND TERMINATION

6.01 Term: The initial term of this Agreement shall begin on the Effective Date and end on December 31 of that calendar year, unless the Effective Date is in the last quarter of the calendar year, in which case the initial term shall end December 31 of the following calendar year. Upon expiration of the initial term, this Agreement shall automatically renew for one (1) year terms unless terminated as provided for under this Section 6. All exhibits shall have the effective date set forth therein (and if no effective date is specified in such exhibit, then the Effective Date of this Agreement shall apply) and shall have a term concluding on the day upon which the term of this Agreement concludes.

6.02 Termination without Cause. Other than as set forth in Section 6.03, and subject to the terms of Section 6.04, this Agreement may be terminated at any time without cause by either party upon ninety (90) days prior written notice.

6.03 Termination for Cause

(a) **Termination for Breach or Default.** If either party fails to comply with or perform when due any material term or condition of this Agreement, the other party shall notify the defaulting party in writing in reasonable detail the specific nature of the default, and the defaulting party shall have thirty (30) days to cure the default. If the defaulting party fails to cure the default within thirty (30) days, the other party may declare that this Agreement is terminated.

(b) **Termination by PSW.** PSW may terminate this Agreement at any time as follows:

A. This Agreement may terminate immediately upon receipt by the Provider of written notice:

1. in the event Provider's license(s), permit(s), or any governmental or board authorizations or approvals related to its business operations and/or the provision of Covered Services are canceled, denied, lost, suspended, or voluntarily forfeited. Provider shall provide PSW immediate written notice of

any such actions;

2. In the event Provider fails to satisfy PSW's credentialing or re-credentialing standards;

3. In the event, Provider has been non-compliant in upholding the terms of the contract, associated Provider Manual and policies and procedures set forth by PSW. Noncompliance may include by way of example, but is not limited to, failure to follow pre-authorization procedures and use of non-contracted providers without adequate justification.

4. in the event Provider makes any material misstatements or omissions on any material submitted to PSW or its designees;

5. in the event Provider's insurance coverage required by this Agreement lapses for any reason, Provider shall provide PSW immediate written notice of any such lapse.

B. This Agreement shall terminate automatically and immediately in the event PSW determines, in its sole discretion, that Provider's action or inaction and/or continuation of this Agreement may have a significant adverse effect on Enrollees care.

6.04 Services after Termination. In addition to other provisions of this Agreement, the following provisions will survive termination of this Agreement:

A. In the event that notice to terminate this Agreement is given, at PSW's option, this Agreement shall remain in effect and Provider shall continue to provide Covered Services hereunder to Enrollees who have selected Provider and are confined in an Inpatient Facility on the date of such termination, until such Enrollee's discharge or alternative coverage for such Inpatient confinement is obtained.

6.05 Continued Record Access. Provider will maintain records of Enrollees as required by law. Provider will allow PSW continued access to Provider's retained records for the longer of ten (10) years or as required by law after the date of payment for Covered Services by PSW.

6.06 Removal from Directories. Upon termination of this agreement, PSW will remove all associated Providers from all directories that list PSW's contracted health care providers. Upon the termination date, Provider will inform any Enrollees that seek services at Provider that this Agreement has been terminated.

6.07 Notification of Enrollees. PSW shall request that Provider / Practice make a good faith effort to provide Enrollees who are patients of Provider with written notification at least thirty (30) days prior to the effective date of the termination of identified Provider and/or of

this Agreement. Provider shall provide PSW with a contemporaneous copy of communications with Enrollees regarding termination or continuation of Provider's contractual relationship with PSW. In order to ensure the continuity and appropriateness of medical care to Enrollees, PSW may immediately inform Enrollees of the effective date of the termination of this Agreement and request that Enrollees select another Provider prior to the effective date of the termination of this Agreement.

PART 7 GENERAL PROVISIONS

7.01 Amendments. Except as provided below for amendments required by law, regulation or regulatory authorities, PSW may amend this Agreement by providing Provider ninety (90) day prior written notice consistent with the terms of Section 7.10, except in the case of rate adjustments, in which case the required prior written notice shall be sixty (60) days. Any such amendments shall be in writing, shall include an effective date and shall be signed by PSW and Provider.

PSW may amend this Agreement to comply with any requirement of law, regulation or regulatory authorities. PSW shall give written notice to Provider of such amendment and its effective date. Unless applicable regulatory authorities direct otherwise, the signature of Provider will not be required. If Provider does not wish to comply with the terms of this Agreement as amended by such law, regulation or regulatory authorities, Provider must notify PSW in writing of intent to terminate this Agreement. Provider will be deemed to have accepted and to be complying with the terms of the Amendment until such time as a written notice of objection to these signed by Provider is received by PSW.

7.02 Provider Dispute Resolution. In the event there is a dispute under this Agreement that is subject to dispute resolution, Provider and PSW shall first attempt to resolve the matter through informal good faith discussions. In the event the parties determine that the matter cannot be resolved informally, the following procedures will apply.

Provider Agreement Dispute

A. Informal Discussions.

1. Provider and Plan shall first attempt to resolve the matter through informal good faith discussions. Such discussions may include a meeting or meetings between the parties. In the event the parties determine that the matter cannot be resolved informally, the following procedures shall apply.

B. Mediation.

1. Upon timely initiation of mediation, the parties shall agree upon a mediator. The mediator's fees shall be borne in equal shares by the parties. Unless agreed otherwise, all other related costs incurred by the parties shall be the sole responsibility of the party initiating the dispute. The mediator shall, in

consultation with the parties, determine a process and schedule for the mediation. In the event the parties cannot resolve the matter through non-binding mediation, either party may institute an action in any Superior Court of competent jurisdiction.

2. The dispute resolution procedures in this Section 7.02 apply to health care provider complaints, including whether modifications to the Agreement or to compensation manuals, administrative rules, procedures and policies subject to Section 2.05 have been proposed and made in compliance with the terms of this Agreement and with applicable law. The substance of such modifications shall not be subject to dispute resolution under this Section 7.02.

3. All notices and correspondence pursuant to this section shall comply with the terms of Section 7.10

Provider Payment Disputes.

1. Provider may request a dispute of payment within sixty (60) days of receipt of notification from PSW,
2. PSW is under no obligation to consider a dispute received after the timeframe set forth above.
3. Request should include a description of issue, evidence supporting request and description of outcome sought.
4. Disputing provider will be notified of determination within sixty (60) days following receipt of request.
5. PSW's determination is final. There are no additional levels of dispute.

7.03 Assignment. No assignment of the rights, duties or obligations of this Agreement, including assignment by operation of law, will be made by Provider without the written consent of PSW. If PSW merges, consolidates with another entity or does business under another name or with another entity, this Agreement will continue in full force and effect.

7.04 Subcontracts and Affiliation Agreements. If Provider wishes to establish an agreement with a subcontractor or an affiliate to provide Covered Services to Enrollees hereunder, the agreement proposed must be submitted to PSW for prior approval thirty (30) days prior to the agreement's effective date, along with all necessary information required to administer the agreement.

Such agreements shall be in place and approved by PSW prior to such subcontractor or affiliate providing Covered Services to Enrollees. All such agreements shall conform to State and Federal regulatory requirements. In addition, each such subcontract shall

have a copy of this Agreement including Appendices appended thereto and shall provide that:

A. the party with whom Provider so contracts must satisfy and comply with the terms of this Agreement; and

B. the subcontract and/or affiliation agreement to the extent it relates to PSW shall be terminable at the request of PSW consistent with the terms of this Agreement.

All Providers who provide Covered Services under such an agreement must be credentialed as required by PSW.

Provider acknowledges, under this agreement, affiliations and/or subscriptions to concierge services that aim to provide same/similar offered services for an additional fee to member, that are otherwise covered by a contracted Medicare Advantage Health plan, are not permitted. Provider participation in such program or affiliation will result in termination of this agreement.

7.05 Entire Agreement. This Agreement, including all Exhibits, Appendices, addenda, attachments and amendments, constitutes the entire agreement between PSW and Provider. No implied covenants will be read into this Agreement. This Agreement supersedes all prior agreements between the parties.

7.06 Severability/Conformity with Law. If any part of this Agreement shall be found to be invalid, void or unenforceable, the remainder of the Agreement shall remain in full force and effect. Both parties will comply with all applicable State and Federal laws and regulations, including but not limited to those related to Medicare, Medicaid and/or other state or federal health care delivery programs. This Agreement shall be interpreted, and if necessary amended, to conform to applicable State and Federal law in effect on or after its Effective Date.

7.07 Headings. The headings of sections and paragraphs contained in this Agreement are for reference purposes only and will not in any way affect the meaning or interpretation of this Agreement.

7.08 Relationship of parties. PSW shall serve as an agent for Provider with respect to PSW contracted Medical Plan agreements. Neither Provider nor PSW nor any of their respective employees will otherwise be construed to be the agent, employee or representative of the other, or liable for any acts of omission or commission on the part of the other.

7.09 Nonrestrictive Participation. Nothing contained in this Agreement or any related document will be construed to restrict the participation of Provider in any other health care delivery system or payment plan.

7.10 Notices. Other than as set forth below, notices required by this Agreement will be in writing

and mailed, postage prepaid, to the other party at the mailing address shown in this Agreement or to such other address as may be specifically provided by one party to the other for the purpose of receiving notice. Notice is considered effective on the date it is received, or three days following the postmark date, whichever is earlier. Notices of Termination; requests, notices, and correspondence required under the terms of Section 7.02A shall be sent certified mail, return receipt requested.

7.11 Waiver of Breach. Neither the failure nor delay on the part of either party to exercise any right under this Agreement will serve as a waiver of that right. If either party should waive any breach of any provision of this Agreement, it will not be deemed or construed as a waiver of any other breach of the same or a different provision.

7.12 Changes to Subscriber Agreements. Any Medical Plan may change, revise, modify or alter the form and/or content of any Subscriber Agreement without prior notice to Provider.

7.13 Trademarks. The parties each reserve the right to control the use of their respective names, symbols, trademarks and service marks presently existing or later established. In addition, neither party will use the other party's name, symbols, trademarks or service marks, nor shall Provider use the name, symbol or service mark of PSW or a PSW contracted Medical Plan in advertising or promotional material or otherwise, without prior written consent of PSW and the Medical Plan, as appropriate, and will cease any such usage immediately upon written notice of that party or upon termination of this Agreement, whichever is sooner, except as provided at Section 2.03.

If Provider utilizes its own Enrollee education materials inclusive of PSW or a PSW contracted Medical Plan's name and information, then such materials must be submitted to PSW and the PSW contracted Medical Plan at least sixty (60) days prior to its intended use. Such materials must receive the prior approval of PSW and any PSW contracted Medical Plan and of any regulatory body to ensure conformity with applicable regulatory requirements

7.14 Proprietary and Confidential Information. The existence of this Agreement is not considered confidential information. However, neither party will disclose the terms or contents of this Agreement and/or any of the Appendices attachments, addenda, amendments and Exhibits without prior written consent of the other party. In addition, neither party shall disclose the course or substance of any ongoing contractual negotiations other than to counsel for that party or to any regulatory body regarding matters within the jurisdiction of that body, without the prior written consent of the other party. This provision shall survive termination of this Agreement.

Provider and PSW acknowledge they are both subject to state and federal privacy regulation and agree to comply with all applicable laws.

7.15 Indemnification.

A. Indemnification of Provider. PSW agrees to indemnify Provider and to hold

harmless Provider against any claims, actions, liabilities, damages, and losses (collectively "Damages"), including reasonable attorneys' fees and costs, to the extent such Damages are caused by PSW's negligence in discharge of duties or obligations which are solely the responsibility of PSW, its agents or employees during the term of this Agreement. Notwithstanding the foregoing, such indemnity shall not include any claim arising from an allegation of medical malpractice against the Provider, its agents or employees.

B. Indemnification of PSW. Provider agrees to indemnify PSW and to hold harmless PSW against any Damages (as defined in 7.15A), including reasonable attorneys' fees and costs, to the extent such Damages arise or are related to (i) claims of malpractice or negligence for which Provider, its employees, agents or representatives are responsible, or (ii) the use or maintenance of any property, facilities or equipment by or under the direction of Provider or (iii) the performance of any activity by or under the direction or control of Provider during the term of this Agreement. This provision shall survive termination of this Agreement.

7.16 Compliance. Provider will abide by all applicable state and federal laws and regulations, including: those of Medicare, Medicare Advantage, Medicaid, or Commercial Health Plans, as applicable.

- a) **Compliance with Applicable Medicare Laws and Regulations.** PSW and any Related Entity, contractor or subcontractor will comply with all applicable Medicare laws, regulations and CMS instructions. PSW is ultimately responsible to Health Plan and/CMS for the performance of all functions and responsibilities described in the Medicare Advantage regulations.
- b) **Compliance with PSW's Medicare Advantage Organization Requirements.** Any services or other activity performed in accordance with a contract or written agreement by provider or any Downstream Entity are consistent and comply with PSW's contractual agreement as a delegated Medicare Advantage Organization.
- c) **Compliance with PSW's Standards of Conduct, Policies & Procedures and Provider Manual.** Provider shall comply with PSW's rules, policies and procedures as set forth in written guidelines, notices and bulletins and the electronic Provider Manual as it may be amended or updated by PSW from time to time.

Provider agrees to comply in all material respects with: Title VII of the Civil rights Act of 1964 as implemented by regulations at 45 CFR Part 84; The Age Discrimination Act of 1975 as implemented by regulations at 45 CFR Part 91; The Rehabilitation Act of 1973; The Americans With Disabilities Act; The False claims Act (32 U.S.C. §3729 et. seq.; The Anti-kickback Statute (Section 1128B (b) of the Act); and all other laws applicable to recipients of Federal funds.

Provider shall comply with all applicable requirements of federal Medicare law and regulations, together with PSW, and any PSW contracted Medical Plan, as an eligible Medicare Advantage Organization, and the Centers for Medicare and Medicaid Services (CMS), a copy of which shall be made available to Provider upon request.

7.17 Payment and Federal Funds. Neither PSW nor Provider shall make any specific payment, directly or indirectly, to a physician or physician group as an incentive to reduce or limit Medically Necessary Services furnished to any particular Enrollees. Indirect payments may include offerings of monetary value (such as stock options or waivers of debt) measured in the present or future.

Throughout the term of this Agreement both parties shall remain in good standing with all applicable regulatory agencies, and shall comply with all applicable federal and state laws and regulations. Each party, in fulfilling its obligations under this Agreement, acknowledges that it is subject to certain laws that are applicable to individuals and entities receiving federal funds. Each party agrees to inform all related entities, contractors, and subcontractors that payments that they receive are, in whole or in part, from federal funds.

7.18 Force Majeure. Neither party shall be considered to be in breach of this Agreement if its failure to comply is occasioned by any act of God, bankruptcy or action of a governmental authority responding to an act of God or other emergency, or the result of a strike, lockout or other labor dispute.

7.19 Governing Law. This Agreement will be construed in accordance with the Procedural and substantive laws of the State of Washington.

**EXHIBIT A – Consulting Specialists
PSW Medicare Advantage Medical Plans**

REIMBURSEMENT FOR COVERED SERVICES

RadiantCare Physicians, PLLC

shall provide Covered Services to Enrollees entitled to receive such services. PSW agrees to reimburse Provider at the following rates or billed charges, whichever is less.

Professional Services

PSW agrees to reimburse Provider at 103% of Medicare par rate. Medicare par rate is the standard rate payable to practitioners providing services to Medicare beneficiaries following Medicare payment rules. Such Medicare payment rules includes all rules applicable to Medicare payments whether currently in effect or retroactively applied by the Centers for Medicare and Medicaid Services (CMS) including, without limitation, sequestration or audit take back.

Ancillary and Other Reimbursement

Office based laboratory services are reimbursed at 85% of Medicare par rate. All other services and supplies, including, without limitation, radiology services, injectibles, physical therapy, optometry, and other ancillary services or equipment are reimbursed at Medicare par rate.

For Covered Services provided to members without an established Medicare rate, PSW will reimburse Provider at 80% of billed charges.

Non-covered materials shall include, but are not limited to, the following.

- Convenience items
- Items not Medically Necessary

Nothing in this Agreement shall prevent Provider from providing non-covered supplies to Enrollees on a usual and customary rate basis at customer's expense.

Reciprocity

Provider agrees to provide services to any enrollee in a PSW contracted Medicare Advantage HMO Medical Plan who is referred from a non PSW primary care provider and which member is not part of the PSW risk pool at Medicare par rate.

PHYSICIANS OF SOUTHWEST
WASHINGTON, L.L.C.

By: Gregory Allen
Signature
Gregory Allen, MD, PhD

Print or Typed Name
Managing Partner

Title/Authority

8/16/19
Date Signed

By: Tamara Scheffert
Signature

TAMARA SCHEFFERT
Print or Typed Name

CDO
Title/Authority

8/26/19
Date Signed

EXHIBIT B
List of Providers Covered by Provider Agreement

PRACTICE NAME: RadiantCare Physicians, PLLC **ORG NPI#** 1851378160

Primary Address: 4525 3rd Ave SE, Ste 100, Lacey, WA 98503

PROVIDER NAME	PROVIDER CREDENTIALS	PROVIDER NAME	PROVIDER CREDENTIALS
Gregory Allen	MD, PhD	James Raymond	MD
Robyn Vera	DO	Haleigh Werner	MD
Justin Suszko	MD		
Other Practice Locations and Providers Assigned to that Location			
OTHER PRACTICE LOCATION ADDRESS ORG NPI#		PROVIDER NAME	PROVIDER CREDENTIALS
1200 Basich Blvd, Aberdeen, WA 98520	1200 Basich Blvd, Aberdeen, WA 98520		
1200 Basich Blvd, Aberdeen, WA 98520	1200 Basich Blvd, Aberdeen, WA 98520		

Please attach second page or use back of this page to list any additional practice locations or providers.

Handwritten signature/initials

APPENDIX 1

**LIST OF MEDICAL PLANS PARTICIPATION
EFFECTIVE JANUARY 1, 2019**

Medical Plan means any commercial, Medicaid or Medicare Advantage plan that has contracted with PSW to provide Covered Services to Enrollees.

- Humana, a Medicare Advantage HMO, PPO & DSNP plan
- Premiera Blue Cross, a Medicare Advantage HMO Plan

APPENDIX 2

ADDITIONAL MEDICARE ADVANTAGE REGULATORY REQUIREMENTS

The following are certain additional terms required as part of this Agreement pursuant to Medicare Advantage plan law and regulations. This Medicare Advantage Regulatory Requirements Appendix (this "Appendix 2") sets forth these items and is made part of this Agreement.

This Appendix 2 will be deemed to be updated to incorporate any changes to the laws and regulations referenced herein, including any changes to definitions referenced herein, effective as of the date of such changes.

1. **Participation Requirements.** Provider represents and warrants that Provider is not excluded, and will not employ or contract with any individual who is excluded, from participation in any federal or state program, including, without limitation, Medicare under Sections 1128 or 1128A of the Social Security Act.
2. **Medicare Enrollees.** Provider agrees to provide Covered Services to Enrollees who are enrolled pursuant to a Subscriber Agreement for Medicare recipients. Provider acknowledges that PSW's and any Medical Plan's agreements for Medicare Advantage products with Facilities and Providers are subject to review and approval by the Center for Medicare and Medicaid Services (CMS).
3. **Care Management.** Provider agrees to participate in PSW's and any Medical Plan's internal Care Management activities. This participation includes, but is not limited to, (1) providing access to on-site office and medical record review, (2) providing copies of medical records, (3) participating in focused studies and/or committees, and (4) cooperation with complaint resolution. Provider authorizes PSW's Medical Director, or his/her designee, to obtain from internal and external sources, information which is relevant to Care Management programs. Provider agrees that he or she shall not bring any suit, claim or other action which he or she may otherwise be entitled to bring against PSW or any Medical Plan or any of their respective employees or agents as a result of any communication, report, recommendation or disclosure made or received by PSW or any Medical Plan if such information is provided responsibly, in good faith and without malice or carelessness, and for the purpose of achieving and maintaining quality, cost effective care of Enrollees. Provider acknowledges that PSW and any Medical Plans must report certain information and actions to the National Practitioner Data Bank, Healthcare Integrity and Protection Data Bank, and/or the appropriate regulatory entity. PSW and any Medical Plans are bound by law to report such incidents.

4. **Access to Care.** Provider shall cooperate with PSW and any Medical Plan's written standards for timely access to care and services by Enrollees. Where a Subscriber Agreement requires certain services to be provided only upon the referral of a primary care provider, the following Covered Services may be provided to Enrollees without such a referral: (1) screening mammography and influenza and pneumococcal vaccination Covered Services; and (2) for women, routine and preventive Covered Services from a Provider that is an in-network, women's health specialist. No Enrollee expenses shall apply to influenza and pneumococcal vaccines.
5. **Cooperation with Procedures and Programs.** Provider shall cooperate and comply with the following: (1) all credentialing and re-credentialing processes and all Care Management, quality assessment and performance improvement, medical, peer review, on site review, advance directives, and other CMS, PSW and any Medical Plan's policies, procedures and programs; (2) PSW's and any Medical Plan's member grievance and appeal/expedited appeal processes, including gathering and forwarding information to PSW and/or a Medical Plan on a basis that will permit PSW and any Medical Plan to meet CMS required timeframes for disposition of grievances and appeals; (3) the activities of any independent quality review and improvement organization approved by CMS that is under contract with PSW or a Medical Plan; (4) as applicable, PSW's or a Medical Plan's processes for identifying Enrollees with complex or serious medical conditions, assessment of those conditions, and establishment and implementation of a treatment plan appropriate to those conditions; and (5) Provider process to include conducting an initial assessment of each Enrollee's health care needs within 90 days of the effective date of their enrollment.
6. **Data Collection Requirements.** Provider acknowledges that PSW and any Medical Plan are required by CMS to maintain a health information system that collects, analyzes and integrates all data necessary to compile, evaluate and report certain statistical data related to costs, utilization and quality, and such other matters as CMS may require from time to time. Provider hereby agrees to submit to PSW and any Medical Plan, upon request, all data necessary for PSW and any Medical Plan to fulfill these obligations, and within the timeframes specified by PSW and/or any Medical Plan to meet CMS requirements. Each Provider hereby represents and warrants, and to the extent required by PSW and any Medical Plan, hereby agrees to certify in writing at the time of submission to PSW or any Medical Plan or its designee, that all data including, but not limited to, encounter data and other information that CMS may specify, shall be truthful, reliable, accurate and complete.

7. Payment.**(a) Provision of Covered Services.**

For the provision of Covered Services to Medical Plan Enrollees, Providers shall be paid in accordance with this Agreement. Enrollee expenses, if any, may be collected directly from the Enrollee. If Provider is responsible for making payment to subcontracting Practitioners for Covered Services provided to Enrollees, then the Provider shall make such payments in accordance with the CMS and State of Washington regulations. Provider shall ensure that payment and incentive arrangements with subcontractors, if any, are specified in a written agreement and comply with CMS and State of Washington laws and regulations. Additional information regarding payment and incentive payments to subcontracting Practitioners must be made available to the subcontracted Practitioners upon request.

(b) Prompt Payment.

For Covered Services provided to Enrollees, PSW or Provider, if Provider is responsible for making payment to subcontracting Participants for Covered Services provided to Enrollees, shall pay contractor or Provider as soon as practical but subject to the following minimum standards:

- 1) Ninety-five percent (95%) of the monthly volume of Clean Claims shall be paid within thirty (30) days of receipt; and
- 2) Ninety-five percent (95%) of the monthly volume of all claims shall be paid or denied within sixty (60) days of receipt, except as agreed to in writing on a claim by claim basis.

The receipt date of a claim shall be the date PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, receives either written or electronic notice of the claim. PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, shall pay contractor or Provider interest on paid Clean Claims more than sixty-one (61) days old. Interest shall be assessed at the rate required by applicable state or federal law, or as otherwise agreed by contract between contractor and Provider, and shall be calculated monthly as simple interest prorated for any portion of a month. PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, shall add the interest payable to the amount of unpaid claims without the necessity of the contractor or Participant submitting an additional claim. PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, shall not apply any interest to an Enrollee's deductible, copayment, coinsurance or any similar obligation of the Enrollee.

PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, shall reimburse contractor or Provider for covered services following receipt of a clean claim in accordance with Medicare rules.

Claim denials shall include the specific reason why the claim was denied. If the denial is based upon Medical Necessity or similar grounds, PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, upon request from contractor or Provider shall promptly disclose the supporting basis for the decision.

These standards do not apply to claims about which there is substantial evidence of fraud or misrepresentation by contractor, Provider or Enrollee or instances where PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, has not been granted reasonable access to information under contractor or Provider's control.

(c) Hold Harmless Provisions.

Provider shall hold Enrollees harmless for payment of fees that are the legal obligation of PSW or any Medical Plan and its contract to fulfill. Such provision will apply but not be limited to insolvency of PSW or any Medical Plan, or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, contract breach and provider billing; Provider hereby agrees that they will not bill, charge, collect a deposit from, seek compensation, remuneration from or have any recourse against an Enrollee or other person acting on an Enrollee's behalf, other than PSW, for services provided pursuant to this Agreement. This provision shall not prohibit collection of deductible, copayments, coinsurance and/or non-covered services which have not otherwise been paid by a primary or secondary carrier in accordance with regulatory standards for coordination of benefits, from Enrollees in accordance with the terms of the Enrollee's Subscriber Agreement. Participating Providers shall collect any Enrollee Expenses due from Enrollees for Covered Services directly from such Enrollees, and shall not waive, discount or rebate any such Enrollee Expenses.

8. **Private Contracts.** PSW or Provider, if Provider is responsible for making payment to subcontracting Providers for Covered Services provided to Enrollees, may not pay, directly or indirectly, on any basis, for services rendered by a Provider to an Enrollee if Provider files or is required to file an affidavit with a Medicare carrier agreeing to furnish Medicare covered services to any Medicare beneficiary through a private contract, except that payment may be made by PSW for emergency and urgent care services. Such payment shall be limited to the Medicare allowable charge.

9. **Excluded Individuals.** Provider is prohibited from employing or contracting with an individual who is excluded from participation in Medicare under Section 1128 or 1128A of the Social Security Act (or with an entity that employs or contracts with such an individual) for the provision of any of the following: (1) health care; (2) utilization review; (3) medical social work; or (4) administrative services.
10. **Laws and Regulations.** Provider and PSW shall each maintain, without material restriction, all applicable federal, state and local licenses, certifications and permits which are required to fulfill their obligations under this Agreement and any Exhibits and Appendices hereto in the applicable jurisdiction. Provider shall comply with all applicable Medicare laws, regulations, reporting requirements, and CMS instructions (and shall cooperate, assist and provide information, as requested), and shall comply with all other applicable federal, state and local laws, rules and regulations including, but not limited to, Title VII of the Civil Rights Act of 1964, The Age Discrimination Act of 1975, and The Americans With Disabilities Act. Facilities and Providers shall also cooperate with PSW and any Medical Plans in its efforts to comply with the laws, regulations and other requirements of applicable regulatory authorities. Provider shall require that all health care professionals employed by or under contract to render Covered Services to Enrollees, including covering providers, comply with this provision.
11. **Records**
 - (a) **Maintenance and Accuracy of Records.** Provider will assure that adequate medical, financial and administrative records related to the services rendered under this Agreement are maintained in an accurate and timely manner, including prominent documentation of an executed Advance Directive, if any.
 - (b) **Access to Records.**
 - (i) PSW, any Medical Plans, The Secretary of Health and Human Services (the "Secretary"), the Comptroller General or their designees shall have the right to audit, evaluate or inspect any books, contracts, medical records, patient care documentation and other records of Facilities and Providers that pertain to: (1) the services performed under this Agreement; (2) reconciliation of benefit liabilities (3) determination of amounts payable; or (4) other relevant matters as such person conducting the audit, evaluation or inspection deems necessary.
 - (ii) The right described above shall extend through 10 years from the final date of the applicable Medical Plan Contract period or completion of audit, whichever is later; provided, however, that such access may be required for a longer time period if: (1) CMS determines that there is a special need to retain a particular record or group of records for a longer period and CMS provides notice at least

30 days before the normal disposition date; (2) CMS determines that there has been a termination, dispute, fraud or similar fault, in which case the retention may be extended to 10 years from the date of any resulting final resolution of the matter; or (3) CMS determines that there is a reasonable possibility of fraud, in which case it may perform the inspection, evaluation or audit at any time.

(iii) For the purpose of conducting the above activities, Provider shall make available their premises, physical facilities and equipment, records relating to Enrollees, and any additional relevant information that CMS may require.

(c) **Enrollee Access to Records.** Provider agrees to establish procedures to ensure timely access by Enrollees to medical records and other health and enrollment information that pertains to them.

(d) **Confidentiality of Records.** PSW and Provider shall safeguard the privacy and confidentiality and security of any Enrollee information consistent with all federal and state laws. PSW and Provider shall also abide by all federal and state laws regarding confidentiality and disclosure of medical records and other health and enrollee information.

12. **Rules of Participation.** PSW's rules of participation are set forth in this Agreement, and in PSW's and any Medical Plan's provider manuals and credentialing plans, which shall be made available to Provider. Written notice of material changes to the rules of participation shall be provided prior to the effective date of such changes.

13. **Additional Termination Provisions.** Notwithstanding any provision in this Agreement to the contrary, the following provisions shall apply to Provider's participation in PSW's network of Providers only:

(a) Provider's participation in PSW's Medicare Advantage network of Providers may be terminated by PSW immediately upon written notice due to:

(1) loss or suspension of licensure or certification; (2) sanction by Medicare; or (3)

Provider entering into a private contract with any Medicare beneficiary; or

(b) If this Agreement contains any provision permitting termination of this Agreement without cause, notice of such termination shall be given by either party in accordance with the applicable provision of this Agreement, but in no such case shall the notice period be less than 60 days prior to the termination date.

(c) Any written notice to Provider by PSW regarding its, his or her suspension or termination shall include the following, to the extent applicable:

(1) the reason for the suspension or termination; (2) the standards and profiling data used by PSW or a Medical Plan to evaluate the Provider; (3) the numbers and mix applicable providers needed in the network; (4) right to appeal the action; and (5) the process and timing for requesting a hearing.

(d) Provider shall provide PSW and any Medical Plan with a list of its, his or her patients who are Enrollees within fifteen (15) business days of the date that Provider either gives or receives notice of termination. PSW will request that any Medical Plan make a good faith effort to notify all affected Enrollees of the termination of this Agreement, within the time period required by applicable law, after notice of termination is given.

14. Acknowledgements and Delegated Activities. Provider acknowledges and agrees that:

- (a) Agreements with Providers are subject to review and approval by CMS;
- (b) PSW and any Medical Plan receive payments in whole or in part from federal funds. Contractors and subcontractors, including Provider, are subject to certain laws that are applicable to individuals and entities receiving federal funds. Provider agrees that any services or activity performed by him or her in connection with this Agreement and its Exhibits will be consistent with and comply with PSW's and any Medical Plan's contractual obligations to CMS and other applicable state and federal laws and regulations; and
- (c) Any Medical Plan, and PSW through its contractual relationship with the Medical Plan, oversees and is accountable to CMS for any functions or responsibilities that are contained in a Medical Plan Contract, including those that the Medical Plan may delegate to others. Activities or responsibilities under the Medical Plan Contract that are delegated by the Medical Plan to a contractor or a Provider must be set forth in a written agreement that contains, at a minimum, the following CMS delegation requirements: (1) the specific delegated activities and reporting requirements; (2) a right of revocation of the delegation activities and reporting requirements in instances where CMS or the Medical Plan determines that a Provider has not performed satisfactorily; (3) a provision specifying that the performance of a Provider is monitored by the Medical Plan on an ongoing basis; (4) a provision specifying that the credentialing process must be reviewed and approved by the Medical Plan, and the Medical Plan shall audit the credentialing process on an ongoing basis; and (5) a requirement that each Provider must comply with all applicable Medicare laws, regulations, reporting requirements and CMS instructions. Any written delegation agreement between PSW and a Provider is hereby amended to

Include these requirements.

15. **Regulatory Amendment.** PSW may amend this Agreement to comply with the requirements of state and federal regulatory authorities, and shall give written notice to Provider of such amendment and its effective date. Unless such regulatory authorities direct otherwise, the signature of Provider will not be required.
16. **Noninterference with Advice to Enrollees.** Nothing in this Appendix is intended to prohibit or restrict Provider from advising or advocating on behalf of an Enrollee about (1) the Enrollee's health status, medical care, or treatment options (including alternative treatments that may be self-administered), including providing sufficient information to the Enrollee to provide an opportunity to decide among all relevant treatment options, (2) the risks, benefits and consequences of treatment or non-treatment, and (3) the opportunity for the Enrollee to refuse treatment and express preferences about future treatment decisions. Provider must assure that individuals with disabilities are furnished with effective communications in making decisions regarding treatment options.
17. **Individual Providers and Facilities.** Provider acknowledges and agrees that:
 - (a) Agreements with Providers are subject to review and approval by CMS;
 - (b) Provider agrees to adhere to CMS marketing provisions.
 - (c) PSW and any Medical Plan receives payments in whole or in part from federal funds. Contractors and subcontractors, including Provider, are subject to certain laws that are applicable to individuals and entities receiving federal funds. Provider agrees that any services or activity performed by him or her in connection with this Agreement and its attachment will be consistent with and comply with PSW's and any Medical Plan's contractual obligations to CMS and other applicable state and federal laws and regulations; and
 - (d) A Medical Plan and PSW oversees and is accountable to CMS for any functions or responsibilities that are contained in the Medical Plan Contract, including those that the Medical Plan or PSW may delegate to others. Activities or responsibilities under the Medical Plan Contract that are delegated by Medical Plan to PSW and in turn to Contractor or a Provider must be set forth in a written agreement that contains, at a minimum, the following CMS delegation requirements: (1) the specific delegated activities and reporting requirements; (2) the right of revocation in the event CMS, PSW or the Medical Plan determines that Provider has not performed the delegated duties in a satisfactory manner; (3) a right to approve, suspend or terminate the delegated activities and reporting requirements in instances where CMS, PSW or the Medical Plan determines that

Contractor or a Provider has not performed satisfactorily;

- (e) A provision specifying that the performance of Contractor and Provider is monitored by PSW and any Medical Plan on an ongoing basis; (4) a provision specifying that the credentialing processes must be reviewed and approved by PSW and a Medical Plan, and PSW and any Medical Plan shall audit the credentialing process on an ongoing basis; and (5) a requirement that Contractor and each Provider must comply with all applicable Medicare laws, regulations, reporting requirements and CMS instructions. Any written delegation agreement between a Medical Plan and/or, PSW and Contractor or a Provider is hereby amended to include these requirements.

18. All Enrollees eligible for both Medicare and Medicaid. Enrollees will not be held liable for Medicare Part A and B cost sharing when the State is responsible for paying such amounts. Participating Providers will be informed of Medicare and Medicaid benefits and rules for enrollees eligible for Medicare and Medicaid. If Participating Provider is a Downstream Entity, the Participating Provider may not impose cost-sharing that exceeds the amount of cost-sharing that would be permitted with respect to the individual under title XIX if the individual were not enrolled in such a plan. Participating Providers will: (1) accept the MA plan payment as payment in full, or (2) bill the appropriate State source. [42 C.F.R. §§ 422.504(i) (3) (i) and 422.504(g)(1)(i)]

APPENDIX 3

ADDITIONAL WASHINGTON STATE REGULATORY REQUIREMENTS

The following are certain additional terms which Washington laws and regulations require as part of this Agreement. This State of Washington Regulatory Requirements Appendix (this "Appendix 3") sets forth these items and is made part of this Agreement.

The requirements of this Appendix 3 do not apply to the extent they are preempted by federal law.

This Appendix 3 will be deemed to be updated to incorporate any changes to the laws and regulations referenced herein, including any changes to definitions referenced herein, effective as of the date of such changes.

1. **Continuation of Covered Services after Termination.** In the event this Agreement is terminated and in the event Provider is a Primary Care Provider rendering Covered Services to Enrollees, Provider agrees to continue providing such Covered Services pursuant to the terms and conditions of this Appendix 3 and this Agreement (a) for at least sixty (60) days following termination; and (b) in the case of Subscriber Group Medical Plans, until the end of the next open enrollment period.
2. **Subcontractors.** Provider shall ensure that Practitioners and Facilities subcontracting with Provider shall comply with the applicable requirements set forth in this Agreement and the Washington Administrative Code.
3. **Audit of Billing Records.** To the extent this Agreement allow PSW the right to audit Provider's billing records, Provider shall have the right to audit PSW's denial of Provider's claims under the same terms and conditions that this Agreement sets forth for PSW's audit of Provider's billing records.
4. **Administrative Policies and Procedures.** Pursuant to WAC Section 284-43-320(4), PSW shall notify Provider of Provider's responsibilities with respect to PSW's applicable administrative protocols, programs, policies and procedures, including but not limited to payment terms, utilization management, quality assessment and improvement programs, credentialing, grievance procedures, data reporting requirements, confidentiality requirements and any applicable federal or state requirements. Provider shall comply with any Medical Plan's protocols, programs, policies and procedures. Provider acknowledges that Provider has been given the opportunity prior to contracting to access any Medical Plan's administrative guide at no cost to Provider by way of the Medical Plan's website or by hardcopy upon request to the Medical Plan. Therefore, Provider has had the opportunity to learn of Provider's responsibilities under any administrative guides. The administrative guides describe, among other things, administrative and operational protocols and procedures, such as claims submission, and clinical submission.

requirements. Documents, protocols, procedures, and other administrative policies and programs referenced in this Agreement shall be available for review by Provider prior to contracting and thereafter for changes, amendments, supplements and replacements.

(a) **Denial of Claims.** Provider will not charge Enrollees anything for provided services, if those services are Covered Services pursuant to their Subscriber Agreement, except the applicable co-pay, coinsurance or deductible amount. If Provider's Services are denied or otherwise not paid, or an administrative sanction is imposed, due to Provider's failure to notify PSW, to file a timely claim, to submit a clean claim, to respond to PSW's request for information, or based on PSW reimbursement policies and methodologies, Provider may not charge Enrollee. If the provided services are denied for reason of not being Medically Necessary Services, Provider may not charge Enrollee unless Enrollee has, with knowledge of PSW's determination of a lack of medical necessity, agreed in writing to be responsible for payment of those charges. If the provided services are not Covered Services, Provider may bill Enrollee directly. Provider will not require an Enrollee to pay a "membership fee" or other fee in order to access Provider for Covered Services (except for co-payments, coinsurance and/or deductibles provided for under the Subscriber Agreement) and will not discriminate against any customer based on the failure to pay such a fee.